

Legislative Policy on Inclusive Higher Education in U.S. States

Compiled by Think College Inclusive Higher Education Network

The state legislation in the following table reflects **all legislation that was introduced** for inclusive postsecondary education (IPSE) from 2015-2025. Legislation on the chart is categorized in one of four ways:

Legislation Status

Did not pass – This legislation did not go into effect. A note is provided about the last active status of the bill.

Passed – This legislation was passed, and any associated funding is categorized in one of three ways:

Program Funding: Refers to funding that can be used for program purposes (ex: establish new program, expand programs)

Student Funding: Refers to new state funding that is intended for students with intellectual disability (ID) to use to help offset the cost of college (ex: scholarships, grants)

Expands Access to Funding: Refers to legislation that opened access for students with ID to use funds already available to other college students in the state; no direct appropriations or new money was approved as part of the legislation.

A separate chart with only passed and funded legislation, is available on the [Think College website](#).

Glossary

CTP: Comprehensive Transition Program

HB: House Bill

IDD: Intellectual and developmental disabilities

IHE: Institution of Higher Education

IPSE: Inclusive Postsecondary Education

PSE: Postsecondary Education

SB: Senate Bill

TPSID: Transition and Postsecondary Programs for Students with intellectual dis.

Legislation	Summary	Status & Funding
Alabama		
Alabama HB 554: Colleges, state four-year, veterans, children of deceased and disabled veterans, comprehensive transition and postsecondary programs for children of disabled veterans with intellectual disabilities, tuition reimbursement provided for	Establishes that an Alabama student in an approved comprehensive transition program (CTP) with a parent who is a veteran with a disability (or deceased from combat) will receive equal state educational benefits to students who have similar parentage but are enrolled in traditional 4-year college and university degree programs.	Passed Enacted: May 17, 2021 Funding – Expands Access Expands access for students with ID to use existing state disabled veteran benefits
Arkansas		
Arkansas ACCESS Act 341	Part of Governor Sanders' higher education package. Establishes the Higher Education Transition Scholarship Program for students with disabilities, providing up to \$2,500 per semester for as many as eight continuous semesters or until credential completion.	Passed March 18, 2025 Funding – Student
Arkansas SB 58: An act for the Department of Education – Division of Higher Education Appropriation for the 2022-2023 Fiscal Year	Provides for the Governor's Higher Education Transition Scholarship Program to assist students accepted into transitional programs for students with intellectual and/or developmental disabilities at state institutions of higher education. The provisions of this section shall be in effect only from July 1, 2022 through June 30, 2023.	Passed March 7, 2022 Funding – Student \$2,000,000 for FY 2022-23 only

Legislation	Summary	Status & Funding
Arkansas SB 457: To expand eligibility for the Arkansas Academic Challenge Scholarship Program – Part 2 to include a student who is accepted into an approved comprehensive transition and postsecondary program	Expands eligibility for the Arkansas Academic Challenge Scholarship to include Arkansas students enrolled in comprehensive transition programs (CTPs) with the state. The scholarship amounts that CTP students could receive vary according to the length of their program. Students in a 2-year CTP could receive up to \$1,000 per year, whereas students in a 4-year CTP could receive \$1,000 for Year 1, \$4,000 in Years 2 and 3, and \$5,000 in Year 4.	Did not pass Referred to Committee: March 2, 2021
California		
SB 153 California State Budget	This item in the budget designates \$2M to create a Inclusive College Technical Assistance Center. \$2M ongoing Proposition 98 General Fund to establish a Technical Assistance Center to: assist with development and submittal of federal comprehensive transition and postsecondary program applications, so that students can apply for the Federal Student Aid, facilitate collaboration, assist parents to plan for postsecondary transition, and identify potential funding sources and student financial assistance opportunities.	Passed Signed: 6/24/24 Funding – Technical Assistance Center
California AB 447: Inclusive College Programs This bill was originally introduced in 2022 as AB2920; it was held under suspension. Reintroduced in 2023.	This bill would expand the existing inclusive college programs in California by requiring the California State University, and requesting the University of California, to establish and maintain inclusive college programs for students with intellectual and developmental disabilities at 4-year public postsecondary educational institutions. Existing law already provides for the definition and functions of these programs in California – such as person-centered planning, and inclusive environments, supports and services. The bill does not provide the appropriations to pay for the programs.	Passed Signed: 10/10/2023 No funding as of July 2024

Legislation	Summary	Status & Funding
Colorado		
Colorado HB 1107: Concerning measures related to creating higher education opportunities for persons with intellectual and developmental disabilities	This creates the Colorado Inclusive Higher Education Grant Program to provide grants to state institutions to establish or expand existing IHE programs for students with IDD. Programs must provide meaningful certificates, have inclusive curricula, housing, extracurricular activities, advising, and coursework on independent living, career readiness, self-care, socialization, lifestyle choices, and financial literacy, with a focus toward competitive integrated employment. This also creates the Colorado Inclusive Higher Education Opportunities Cash Fund, a part of the state treasury that will store funding to be disbursed to grantee institutions. The legislature will allocate \$450,000 to the fund annually from FY 2022-23 through FY 2026-27.	Passed Signed: May 26, 2022 Funding – Program Development \$450,000/year appropriation from the general fund for FY 22-23 through FY 26-27
Colorado SB 196: Inclusive Higher Education Act	Creates a pilot program at University of Northern Colorado, University of Colorado at Colorado Springs, and Arapahoe Community College. The program is supported through a collaboration between the Department of Higher Education, JFK Partners and the Colorado Initiative for Inclusive Higher Education. Program site institutions must collaborate with Colorado Dept. of Labor and Employment to identify VR supports and opportunities.	Passed Signed: June 6, 2016 Funding – Program Development Line Item, \$250,000/year for FY 2016-17 through FY 2020-21

Legislation	Summary	Status & Funding
Delaware		
Delaware HB 326: An Act to amend title 14 of the Delaware Code relating to the Delaware Advance Scholarship Program	Created the Delaware Advance Scholarship Program, which provides grants for Delaware students with intellectual disabilities who are seeking a degree or comprehensive certificate at a CTP at a Delaware public higher education institution. Scholarship recipients must be high school graduates with either a diploma or certificate of completion. They must begin attending classes at the institution where they use the scholarship no later than two years after finishing high school unless they lived in foster care between ages 16 and 18 or developed an intellectual disability between 18 and 21. Recipients must also be under 25 and have been eligible for IDEA supports previously. They do not need to have received supports under IDEA to qualify for the scholarship.	Passed June 13, 2018 Funding – Student Line item, \$40,000 in FY 2019 as part of SB237 (Appropriations for Grants-in-Aid)
Florida		
Florida General Appropriations FY 2025	This state appropriations bill awards \$12,484,565 from the general revenue fund to Florida Postsecondary Comprehensive Transition Program: \$2.5M may be used for Center for Students with Unique Abilities center, and remaining must be used for grants to programs (no more than \$500,000) and scholarships for up to \$15,000 for eligible students. (General Appropriations)	Passed: Signed 6/12/24 Funding – Program and Student Funding \$12,484,565 from General Revenue Fun

Legislation	Summary	Status & Funding
Florida SB 2500: Appropriations Increase to CTP Scholarship Award Amounts	This appropriations bill increased the scholarship amount for eligible students from a maximum of \$7,000 to \$15,000. Student eligibility is detailed in section 1004.6485(7) of Florida Statutes. Eligibility requirements include eligibility requirements for a student attending a CTP in general, and must demonstrate satisfactory academic progress in the FPCTP, as determined by the eligible institution that the student attends.	Passed Signed: June 16, 2023 Funding – Student General Revenue Fund: \$8,984,565
Florida SB 672: Florida Postsecondary Comprehensive Transition Act	Created a \$7,000 Comprehensive Transition Program (CTP) Scholarship at individual public higher education institutions in Florida. Created the Florida Center for Students with Unique Abilities, which will review reports from FPCTPs and determine creation of new ones with NCC input.	Passed Signed: January 21, 2016 Funding – Student & Program Development Line Item: \$95,336,000
Georgia		
Georgia HB 916: State Appropriations	Budget proposal of \$1,644,170 included that in both the House and the Senate versions of the budget. For the 2024-2025 there be a total of \$2.6M budgeted at Georgia Student Finance Commission for IPSE Grants at public institutions. This amount is expected to cover tuition and program fees for projected 2024-2025 students.	Passed Signed: 5/7/24 Funding – Student \$2.6M Budgeting in Georgia Student Finance Commission for IPSE FY 25.

Legislation	Summary	Status & Funding
Georgia SB 246: Establishing State Scholarships for IPSE Students Original bill: Georgia HB 185: HOPE Inclusive Postsecondary Education Grants	This bill encompasses the requirements and procedures of a 5-year pilot of a state-funded scholarship for IPSE students. In the fiscal budget year 2024, \$955,830 has been allocated to fund these grants for the first year. The funds will cover tuition, and may cover fees, for IPSE students. Requirements for eligibility of both the IPSE student and the programs are detailed in the bill. Originally presented to be included in the HOPE Grant, the legislation passed as a separate grant.	Passed Signed: April 27, 2023 Funding – Student Student Finance Commission's budget through Georgia Lottery: \$955,830 for FY24
Georgia HB 793: FY 2021 Appropriations	This legislation appropriates \$500,000 in funding for inclusive PSE for students with IDD in the FY 2021 Georgia state budget. This continues an annual source of funding set up in 2019, when the legislature reallocated \$500,000 from the Georgia Vocational Rehabilitation Agency to the Georgia DD Council. This specific funding has been kept at the same level consistently since then.	Passed Signed: June 30, 2020 Funding – Program Development State Annual Budget: \$500,000
Iowa		
Iowa HF 2495: An Act establishing the comprehensive transition and postsecondary program scholarship program.	This directs the college student aid commission to develop and administer a scholarship program for individuals with intellectual, developmental, or learning disabilities who are at least 18 and are, enrolled in an Iowa CTP approved by U.S. DoE. Priority will be given to Iowa students, but not awarded exclusively. The CTP scholarship fund will be established in the state treasury, administered by the college student aid commission, and will consist of appropriations from the state legislature. The commission must adopt rules to administer the scholarship program too.	Did not pass Passage recommended by House Education Subcommittee: March 15, 2022. Placed on calendar under unfinished business on March 24, 2022.

Legislation	Summary	Status & Funding
Kentucky		
<u>Kentucky SB 94: An Act relating to eligibility for the Work Ready Kentucky Scholarship Program</u>	The Work Ready Kentucky Scholarship was established to help Kentuckians who have not yet earned an associate's degree afford an industry-recognized certificate or diploma, and this bill opens the scholarship program to Kentucky students in CTPs as well. Students with ID who apply for a Work Ready Kentucky must be at a CTP that provides them with affordable access to meaningful credentials to prepare for competitive integrated employment.	Passed Signed: March 29, 2022 Funding – Expands Access Expands access for students with ID to use existing scholarship funds
<u>Kentucky HB 158: An Act relating to postsecondary financial aid for students with disabilities</u>	This authorized an increase in the amount of Kentucky Educational Excellence Scholarships (KEES) for students with IDD who enroll in a CTP in Kentucky. Such students are eligible for a \$500 KEES if they are enrolled in at least six credit hours in a term or \$250 if they are enrolled in less than six credit hours.	Passed Signed: April 26, 2016 Funding – Expands Access Expands access for students with ID to use existing scholarship funds
Louisiana		
<u>Louisiana SB 192: Louisiana Postsecondary Inclusive Education Fund Act</u>	This bill establishes the Louisiana Postsecondary Inclusive Education Fund, which will fund the creation of federally approved CTPs at all of Louisiana's public postsecondary education institutions. It also creates the Postsecondary Inclusive Education Advisory Council, which will develop the application process for Louisiana public postsecondary education institutions when they seek money from the Fund and will also advise the Louisiana Board of Regents on IPSE, including how to fund additional programs, engage students and families, and circulate technical assistance. The Council will work with the Board to write a report on these programs' impact and student outcomes for policymakers in the Louisiana state legislature.	Passed Signed: June 18, 2022 Funding – Program Development Established a special fund in the state treasury

Legislation	Summary	Status & Funding
Maine		
Maine LD 46 An Act to Establish a Grant Program to Increase Postsecondary Educational Opportunities for Students with Intellectual or Developmental Disabilities or Autism Spectrum Disorder	Establishes a state grant program to support postsecondary opportunities and employability for students with intellectual or developmental disabilities or autism spectrum disorder. Competitive grants will be awarded to institutions that develop or expand programs meeting federal CTP standards.	Passed but Held by Governor
Maine HP1386: An Act to Establish a Grant Program to Increase Postsecondary Educational Opportunities for Students with Intellectual or Developmental Disabilities or Autism Spectrum Disorder	This bill establishes a grant program in the Department of Education to increase postsecondary educational opportunities and support employment for students with intellectual or developmental disabilities or autism spectrum disorder. Under the grant program, the department awards grants to institutions of higher education to develop and implement pilot programs that allow students to be as included as their student peers without disabilities. To receive funding under the grant program, pilot programs developed by institutions of higher education meet the requirements of a comprehensive transition and postsecondary program under the federal Higher Education Opportunity Act. A portion of the funding must be used for scholarship purposes.	Introduced But Not Passed: Carried Over to the Special Session of the 131 st Legislature
Maryland		
Maryland HB 350 (Budget Bill)	Budget bill allocating \$100,000 in general funds specifically for the TerpsEXCEED Program at the University of Maryland, College Park. Funds are restricted to supporting inclusive higher education and cannot be transferred to other purposes.	Passed Signed May 5, 2025 Program Funding

Legislation	Summary	Status & Funding
Maryland HB 458 / SB 603:	Allows for potential \$350,000 annual allocation starting in FY 2027 to expand the TerpsEXCEED program. Funds may support academic mentoring, career services, and disability coordination. Positions Maryland as a hub for inclusive higher education, offering start-up grants and technical assistance to replicate the model statewide.	Passed Signed May 6, 2025 Program Funding
Maryland SB 182: Supplemental Supports and Services for Students with Disabilities Grant Program	This bill requires the Governor of Maryland to include funding in the annual state budget for a new competitive grant program that will fund supplemental services and supports for students with disabilities at Maryland community colleges. The funding amount in the budget would be at least \$2,500,000 each year and the grant program would be administered by the Maryland Higher Education Commission.	Did not pass Expired 2019
Maryland SB 872: James W. Hubbard Inclusive Higher Education Grant Program	This established a new program to award competitive grants to institutions that create and implement inclusive pilot programs for students with IDD. Recipient institutions need to develop a program that promotes inclusion within all aspects of student life and ensure that students have inclusive academic access, instruction, career development, campus engagement, self-determination, paid work experience, campus living and social activities.	Passed Signed: May 25, 2017 Funding – Program Development \$250,000/year FY 2019, 2020, 2021 provided for in the annual state budget.c

Legislation	Summary	Status & Funding
Massachusetts		
Massachusetts FY 2023 State Budget	Includes provisions that remove barriers precluding persons with ID and autism from participating in state colleges and universities. These provisions ensure state colleges and universities establish guidelines governing selection of individuals with ID and autism as well as course selection. Includes at least \$1.5 million for the new MAICEI Trust Fund to cover planning, implementation, coordination, staffing, and administrative costs to support students in college with services they need to be successful.	Passed July, 2022 Funding – Program Funding \$4 million line item for the Massachusetts Inclusive Concurrent Enrollment Initiatives (MAICEI)
Massachusetts H 4695: An act creating higher education opportunities for students with intellectual disabilities, autism, and other developmental disabilities	This legislation removes several obstacles to enrollment in IPSE and expands opportunities throughout Massachusetts. Massachusetts students with IDD would no longer have to do the following to take part in inclusive undergraduate courses: take a standardized college entrance aptitude test, meet minimum GPA requirements, obtain a passing score on statewide assessment tests, have a high school diploma or equivalent. The bill also directs all public higher education institutions in Massachusetts to enable access to inclusive undergraduate courses and to work with Massachusetts higher education authorities and state agencies to create guidelines for developing inclusive courses and including students with disabilities. This legislation would effectively expand inclusive undergraduate courses to all 29 of Massachusetts' public higher education institutions.	Did not pass Introduced, but not passed, in 2018, 2019, and 2021

Legislation	Summary	Status & Funding
Massachusetts Inclusive Concurrent Enrollment Initiative (MAICEI)	MAICEI offers grants to college-school partnerships to support eligible public high school students with intellectual disabilities, ages 18–22, to increase their academic and career success by being included in a college or university community of learners.	Passed Established 2007 Funding – Program Development MAICEI has been funded since 2007 as a line-item in the annual state budget.
Kentucky		
Kentucky HB 1: State Agency Appropriations An act relating to appropriations and revenue measures providing funding and establishing conditions for the operations, maintenance, support, and functioning of the government of the Commonwealth of Kentucky and its various officers, cabinets, departments, boards, commissions, institutions, subdivisions, agencies, and other state-supported activities.	This is the appropriations bill for funding Kentucky state agencies. The bill provides, under the appropriations for University of Kentucky, "\$500,000 in each fiscal year for the Human Development Institute (HDI) for the Supported Higher Education Project". This funds the Kentucky Supported Higher Education Partnership , which works to increase higher education options, access and success for Kentucky students with intellectual and developmental disabilities.	Passed HB 1 – April 2022 HB 192 - March 2021 Funding – Program Development State Annual Budget: \$500,000 Awarded in 2021 & 2022.
Kentucky HB 192: State Agency Appropriations		
Michigan		

Legislation	Summary	Status & Funding
Michigan SB 842: Michigan Achievement Scholarship	This bill creates a new scholarship program for high school graduates or those who achieve the high school equivalency certificate and qualify under FAFSA. Scholarship applicants must be Michigan residents for at least one year, be a full-time student, and maintain satisfactory academic progress. For community colleges and tribal colleges, the maximum grant award would be \$2,750 per year, for public universities the awards would be a maximum of \$5,500 per year; and for private not-for-profit universities the maximum award would be \$4,000 per year. The scholarship includes students attending CTPs. This legislation is listed here as an example of how students with intellectual disability can be included as new state scholarships are created.	Passed Signed: October 13, 2022 Funding – Expands Access Allows students with ID to access newly created scholarship open to students with and without disability
Minnesota		
Higher Education Conference Committee Report HF4024 (The Minnesota Rise Act is in Article 2 Sec 9 of the HF4024. Once the Statute has been updated it will be MN Statute 135A.163) Originally Introduced as SF 4525 Minnesota RISE Act Minnesota Respond, Innovate, Succeed and Empower (RISE) Act establishment/ HF 4565	Focused on accessibility and support for students with disabilities in higher education institutions in Minnesota. It outlines clear documentation requirements for establishing disability status and mandates that institutions of higher education adopt clear policies regarding disability accommodations and make information about these policies and resources in plain language. Institutions are required to establish reasonable accommodations for students with disabilities, providing lists of accommodations and resources available. The bill also outlines the communication process with admitted students regarding their disability status and accommodation needs, and it keeps the institution from penalizing students who withdraw from classes due to denied accommodations.	Passed Signed 5/24/24

Legislation	Summary	Status & Funding
Minnesota HF 2073: Minnesota Inclusive Higher Education Act Bill was originally introduced in 2022 as HF 4210, but not passed that year.	Established the Inclusive Higher Education Technical Assistance Center, as well as grant establishments for program development. The center will increase access to self-sustaining postsecondary education options across Minnesota for students with ID to earn meaningful credentials through degree, certificate, and nondegree initiatives leading to competitive integrated employment, community membership, and independent living. The Center will be responsible for offering technical assistance to all Minnesota institutions of higher education planning or offering an IPSE initiative. Through collaboration of commissioner of Higher Education and director of the Inclusive Higher Education Technical Assistance Center, a grant program will be established that will assist in the creation of new or enhancement of existing programs to increase enrollment of students with ID.	Passed Signed: May 24, 2023 Program Funding – \$1,000,000/year FY24 and FY25 from the Minnesota general fund
Minnesota HF 1990: A bill requiring a program for students with intellectual and developmental disabilities at certain state universities.	This bill requires that at least two Minnesota state colleges and universities offer an inclusive academic program for students with IDD. The programs must offer an inclusive, two-year, full time residential experience to students with IDD and enable them to engage fully in campus life. The curricula should include life skills, financial literacy, independent living, and rigorous coursework in an area of study chosen by the student. Internships and apprenticeships must also be offered. The Board of Trustees of Minnesota State Colleges and Universities must select the specific institutions. Those chosen must admit at least 15 students with IDD to the new program year.	Did not pass Referred by Chair to House as Higher Education Finance and Policy Division: March 4, 2019

Legislation	Summary	Status & Funding
<u>Minnesota SF 2257: Requiring the Office of Higher Education to Inform Students of Postsecondary Education Options for those with Intellectual and Developmental Disabilities</u>	The Minnesota Office of Higher Education will make available to all residents information about planning and preparing for postsecondary opportunities, beginning in 7th grade through adulthood. This includes but is not limited to postsecondary education options for students with intellectual and developmental disabilities. All Minnesota students and parents will receive broader information from the Office about planning for PSE early, appropriate courses to take in high school, how to evaluate PSE programs before applying to or enrolling in them, how to transfer credits across institutions, and financial assistance options in the state. The bill also appropriates \$100,000 to create a one-time grant to Minnesota Life College, a three-year life skills training PSE program for youth with ASD and “other learning differences”.	Did not pass Expired - last referred to Senate Committee on Higher Education Policy and Finance in March 2019 A bill with identical language, HF 4464, was introduced in April 2018, but it did not pass.

Legislation	Summary	Status & Funding
Minnesota SF 3243: Students with intellectual and developmental disabilities grants expansion to institutions in states sharing a geographic border with Minnesota. Companion Bill: Minnesota HF3401	This bill expands grants for students with IDD enrolled in CTPs to include postsecondary institutions in states that share a geographic border with Minnesota. This means that students with IDD can use Minnesota's public financial aid grants to attend a CTP in North Dakota, South Dakota, Iowa and Wisconsin. The institutions where these grants can be used must have a participation agreement with the Minnesota Office of Higher Education. No more than 25% of grants set aside each year to students with IDD will be given to students who opt to attend an out-of-state CTP. The Minnesota state government has the power to cut financial awards given to students with IDD at out-of-state CTPs so that they can reallocate the funds to in-state CTP students. The commissioner of the state Office of Higher Education will submit an annual report about these awards to the legislature every year by February 15.	Did not pass Hearing in Senate: February 27, 2020
Minnesota 2019: Omnibus Higher Education Finance and Policy Bill	Grants for Students with Intellectual and Developmental Disabilities (ID Grant) provides financial assistance for postsecondary students with intellectual and developmental disabilities to pay for tuition and fees of Comprehensive Transition & Postsecondary (CTP) programs at eligible Minnesota postsecondary institutions. Per statute requirements, the Office of Higher Education submits a report annually to legislative committees with jurisdiction over higher education finance and policy.	Passed Established by the 2017 Minnesota Legislature (Minnesota Statutes 136A.1215) Funding – Student Ongoing appropriation of \$200,000/year in state budget

Legislation	Summary	Status & Funding
Minnesota HF2896: A bill for an act relating to higher education; requiring implementation of a pilot program for students with intellectual and developmental disabilities at certain state universities.	Establishes a new two-year pilot academic program for students with IDD. The program will be located at four state universities and will admit at least ten new students ever year. The program will provide mentoring supports and internship/apprenticeship opportunities to students and will aim to promote independent living. The Board of Trustees of Minnesota State Colleges and Universities will design the program and report regularly to the legislature.	Did not pass Referred to Committee: March 10, 2016
New Jersey		
New Jersey SB 4052: Establishes pilot program in DOE for special education students to attend college courses or vocational training programs	This bill establishes a pilot program for special education students to attend college courses or vocational training programs at county college, vocational schools and local IHEs in NJ. The program would be administered by local school districts that would submit a proposal to the New Jersey Education Commissioner to set up a partnership with a nearby postsecondary institution. They would be responsible for all management and must cover students' tuition. The program's pilot phase would last 4 years in 15 school districts before its future status is determined.	Did not pass Referred to Senate Budget and Appropriations Committee following reporting from Senate Education Committee: November 14, 2019
New York		
New York S3369/A5774 Relates to allowing for students in postsecondary education experience or transition program to receive awards from the tuition assistance program	Amends state education law Section 602 to expand Tuition Assistance Program (TAP) eligibility to students with intellectual and developmental disabilities enrolled in federally approved CTPs. Reintroduced in 2025 after first appearing in 2022. Would ensure TAP financial aid is available to these students alongside their peers.	Did Not Pass Committee Senate

Legislation	Summary	Status & Funding
New York A2341: Act that amends NY education law, allowing for students in postsecondary education experience or transition program to receive awards from the tuition assistance program act Introduced in 2023, Reintroduced in 2024, Did Not Pass	This Act amends the education law Section 602 to allow students in PSE programs eligibility for awards from tuition assistance programs. The amendment to the education law will include a new subdivision that identifies students with intellectual and developmental disabilities as eligible for this award and defines an approved postsecondary program as one that meets the standards and is approved as a CTP.	Did not Pass Referred to Higher Education Committee: 3/4/24
New York S5071: Relates to allowing for students in postsecondary education experience or transition program to receive awards from the tuition assistance program Companion Bill: New York A7236	This bill permits students enrolled in New York postsecondary education experience or transition program to receive awards from the state tuition assistance program. The New York State Commissioner of Education will create new rules to make this access happen. The bill uses the term “comprehensive training programs” to refer to CTPs, instead of “comprehensive transition programs”, which creates some ambiguity.	Did not pass Referred to Higher Education Committee, Reported and Committed to Finance Committee: February 10, 2020
New York A8075: An Act to amend the education law, in relation to establishing a college experience program for students with developmental disabilities.	This bill requires the trustees of SUNY and CUNY to create regulations that will establish a two-year college experience program for students with developmental disabilities at each SUNY and CUNY postsecondary education institution. The college experience program must include academic components focused on practical living skills, including cooking, personal finance, health and wellness, internships, and interpersonal communications. The program must provide housing for students. State university trustees have control over admissions standards, including the level of academic proficiency needed to qualify as a student in such a program. Students may pay tuition through HCBS waivers and SSI.	Did not pass Referred to Committee on Higher Education: January 28, 2019

Legislation	Summary	Status & Funding
North Carolina		
North Carolina HF 259: Community College Programs Expansion and Program Additions	This appropriations bill would increase the number of programs and funding allotted to community colleges for IPSE programs. This expansion would include opportunities for micro credentials or other credentials that lead to increased employment outcomes. This bill would also require all programs in the University of North Carolina system to submit an annual report on program impacts. Included in this appropriations bill is the addition of a certificate accomplishment program at UNC-Wilmington that will be a Comprehensive Transition Program.	Passed Funding – Program Development General Fund: \$3.9 Million for community college programs; amount unidentified for UNCW
North Carolina SB 105: General Appropriations	This established the North Carolina Comprehensive Transition Postsecondary Scholarship Program. The new scholarship program covers cost of attendance for NC students with ID enrolled in current and future CTPs within the UNC system (all North Carolina public universities). Individual institutions may determine the individual size of scholarships to give students based upon need and whether they have received other scholarships that will help cover cost of attendance. Any remaining funds that institutions have not issued in scholarships will be carried over into the coming years to support future CTP students. Also establishes a two-year pilot program at two community college campuses for training programs that provide opportunities for a micro-credential or other credentials that lead to increased employment outcomes for individuals with intellectual and developmental disabilities.	Passed Signed: November 18, 2021 Funding – Program Development and Student Special Provision: Insertion into North Carolina’s 2022 State Budget

Legislation	Summary	Status & Funding
North Carolina HB 1105: COVID/Supplementary G.R.E.A.T. Grant	This directed the University of North Carolina (UNC) Board of Governors to allocate funds to UNC institutions for up to 100 resident full-time students enrolled in CTPs. The funding begins with FY 2021-2022, with direction to allocate funds each year thereafter. This is the state match for in-state students, which until this bill passed were not included in the FTE calculation. If there are more than 100 resident full-time students enrolled at UNC system CTPs in any academic year, the UNC Board of Governors must allocate funds to each institution on a pro rata basis.	Passed Signed: September 4, 2020 Funding – Program Development Line Item: Insertion into North Carolina’s 2020 COVID-19 response legislation
North Carolina HB 351: Catherine’s Law: An Act to appropriate funds for University of North Carolina enrollment funding for the purpose of addressing funding equity for approved comprehensive transition programs	This bill secures \$2 million to support courses for resident full-time students enrolled in CTPs in North Carolina. The bill, entitled “Catherine’s Law”, draws money from the North Carolina General Fund, and would support the three CTPs within the University of North Carolina system at UNC Greensboro, Western Carolina University, and Appalachian State University.	Did not pass Reported Favorably: April 2, 2019
North Dakota		
North Dakota SB 2003	Appropriates \$500,000 in the budget line for advancing students toward education and employment	Passed May 17, 2025 <i>At time of publishing, it is unclear how this money will be utilized as no requirements or description was connected to the bill.</i>

Legislation	Summary	Status & Funding
North Dakota SB 2269: An act to create and enact a new section to the North Dakota Century Code, relating to a postsecondary transitional grant program	Establishes that school district payments (integrated formula payments) will be made to postsecondary transitional programs for students who are on IEPs. The state Superintendent of Public Instruction is responsible for reviewing and approving postsecondary transitional programs, and implementing this legislation by administering the payments. TPSIDs in North Dakota will be able to use these payments to cover program fees for students, making the programs more affordable.	Passed Signed: April 19, 2021 Funding – Expands Access Expands access for school district payments to help with program fees
Ohio		
Ohio HB 49: FY 2018-2019 Operating Budget	Extends eligibility for the Ohio College Opportunity Grant (OCOG) to certain individuals with intellectual disabilities. These individuals must be enrolled in a comprehensive transition and postsecondary program (CTP) in order to qualify.	Passed Passed: June 29, 2017 Item Veto Receipt: February 2, 2018 Funding – Expands Access Opens student eligibility for an existing grant
Ohio SB 5: Address College Affordability	Increases the maximum income tax deduction allowed for contributions to a disability expense account or federally tax-advantaged college savings plan in Ohio. Specifically, this bill doubles the permitted maximum income tax deduction from \$2,000 to \$4,000 per year for each beneficiary. Also creates a Joint Committee on Ohio College Affordability to review and recommend strategies to lower the cost of attending college. Committee members will be bipartisan and appointed by both houses of the Ohio Legislature.	Did not pass Rereferred to Ways and Means Committee: September 12, 2017

Legislation	Summary	Status & Funding
Oklahoma		
HB 3792 Higher education; an act creating Oklahoma Access and Achievement Scholarship Program.	An Act creating the Oklahoma Access and Achievement Scholarship Program. The purpose is to provide an award to eligible students with intellectual disabilities who are pursuing studies at a Comprehensive Transition Program in the state of Oklahoma. Award amounts would be equivalent to the nonguaranteed resident tuition at an institution of higher education or the tuition at a technology center school, awarded by allocation from the Oklahoma Higher Learning Access Trust Fund. Eligibility is determined within the legislation	Passed: Signed 5/21/24 Funding – Student Availability of funding through Oklahoma Higher Learning Access Trust Fund determines the number of scholarships awarded.
SB 1624 Higher education; providing tuition aid grant eligibility for certain programs	Initially introduced in 2023 as SB 322, this act amends 70 O.S. 2021, Section 626.7, allowing opportunities for tuition aid grants to students with intellectual and developmental disabilities enrolled in a postsecondary education program. Eligible students must be enrolled and in good standing at a comprehensive transition and postsecondary program (CTP), approved by the U.S. Department of Education. The Oklahoma State Regents for Higher Education will determine rules and regulations for maximum number of semesters a student may be eligible for grants. The amount of the grant shall not exceed 75% of the tuition and enrollment fees normally charged to residents of the state by the institution of attendance. Annual maximum award determined by annual assessment of funds available.	Passed: 4/30/2024 Expands Access to Funding

Legislation	Summary	Status & Funding
Oklahoma HB 2718: Promise Inclusive Act	The Promise Inclusive Act would provide an award to eligible students who are pursuing education in the state of Oklahoma at CTP programs. Eligible applicants must be a resident of the state, a United States citizen or lawfully present in the United States, have a record satisfactory compliance, have graduated within six years, have completed the curricular requirements for admissions to the institution, have secured admission or is currently enrolled, and have established financial need. Continued eligibility requirements are also outlined in the bill.	Did Not Pass: Referred to Education Committee: March 30, 2023
Oklahoma SB 322: Tuition Aid Grants for Students with IDD	This Act would amend 70 O.S. 2021, Section 626.7, allowing opportunities for tuition aid grants to students with IDD enrolled in a postsecondary education program. Eligible students must be enrolled and in good standing at a CTP program. The Oklahoma State Regents for Higher Education will determine rules and regulations for maximum number of semesters a student may be eligible for grants. The amount of the grant shall not exceed 75% of the tuition and enrollment fees normally charged to residents of the state by the institution of attendance. Annual maximum award determined by annual assessment of funds available.	Did not pass with IPSE portions May 24, 2023 Final passed version of the bill was revised and did not include legislation regarding IPSE
Oklahoma HR 1065: A Resolution Supporting the Development of Comprehensive Transition and Postsecondary Programs for Students with Intellectual and Developmental Disabilities	Directs Oklahoma Institutions of Higher Education (IHE) to work with all government agencies that provide services to individuals with IDD to develop comprehensive transition and postsecondary education programs. Programs created from such partnerships must also include private sector businesses that can create practical learning opportunities for students. IHE transition programs must work with national disability groups to collect and analyze student outcome data.	Passed Signed: April 21, 2016

Legislation	Summary	Status & Funding
Oregon		
Oregon SB 572: Relating to postsecondary education for individuals with disabilities	This legislation would require the Higher Education Coordinating Commission to work with Portland State University (PSU) and community colleges (CCs) to establish PSE programs for youth with IDD. Requirements of program are: establish and plan for individuals to learn and succeed in a CC; ensure students who complete the two year CC have the opportunity to continue enrollment in the Career and Community Studies program at PSU; include community partnerships; provide individual support for students; prepare for post-grad outcomes aligned with employment and independent living; implement universal design for learning practices; support equitable access to inclusive college through the use of peer mentors. Students enrolled should be between the ages of 16 to 26 years old with ID. Appropriations would be from the General Fund - \$600,000 for a two-year period to PSU and \$900,000 for CCs to establish programs.	Did not pass Referred to Ways & Means: April 4, 2023
Rhode Island		
Rhode Island H5636: Higher Education Opportunities for Students with Disabilities Rhode Island S0490: Higher Education Opportunities for Students with Disabilities	This bill, introduced in the House and Senate, would have established the Higher Education Opportunities for Students with Disabilities act. The bill would provide inclusive educational opportunities for a student with a disability to improve academic achievement, employment, independent living skills, and independent learning. The bill outlines the programs guidelines and requirements for universities and college to follow and identifies student qualifications for attendance. Students with ID who are eligible for VR services may qualify for state foundation education aid and federal aid, subject to availability.	Did Not Pass Both bills recommended to hold for further study: April 20, 2023 and May 17, 2023

South Carolina		
<u>South Carolina H 5150: General Appropriations Bill for Fiscal Year 2022-23</u>	Similar to prior years, the state budget includes needs-based funds for students with ID. This year the bill also includes scholarships for students with ID attending a CTP IPSE program (College Transition Program Scholarships). In-state students may receive up to \$5,000/semester in scholarship money, regardless of financial need. New for 2022, if there are unexpected funds, The South Carolina Inclusive Post-Secondary Education Consortium may receive up to \$250,000. Those funds may be used to promote better awareness of CTP programs statewide as an option for youth with ID, through dedicated support for activities such as, student recruitment, development and maintenance of a consortium website and associated materials, and the provision of strategic informational events for prospective students and families.	Passed June 29, 2022 Funding – Student Section 3- H660 Lottery Expenditure Account: \$4,105,597
<u>South Carolina H 4100: General Appropriations Bill for Fiscal Year 2021-2022</u>	The South Carolina state budget includes funds to provide needs-based financial aid to students with ID enrolled in one of South Carolina's CTPs. They are disbursed by the South Carolina Commission on Higher Education. The state budget also allocates lottery scholarship funds to support students with ID who have financial needs and are enrolled in a CTP. Each student may receive a scholarship, called the College Transition Program Scholarship, of up to \$5,000 per academic year. Prior to FY 2020-21: \$350,000 to support needs-based scholarships to students. In addition, each of the state's CTPs (n=5) received \$30,000 from the state legislature to support their development and \$50,000 to support their first year of implementation (<i>information provided by program leaders</i>).	Passed June 30, 2021 Funding – Program Development and Student FY 2020-21 and 2021-22: \$750,000 to support needs-based scholarships for students with ID.

South Carolina HB 3214: A bill to amend the South Carolina Promise Scholarship Act	Establishes terms for the South Carolina Promise Scholarship Program, which would enable students from the general population (not just those with disabilities) to receive a postsecondary education scholarship. Recipients must be enrolled for at least six credit hours and must have a high school or equivalent within two years of applying for the scholarship. They must also maintain a 2.0 GPA and may not have already received a bachelor's degree. A South Carolina student with a documented learning disability can apply for the scholarship (which is open to the general student population) until one of the following occurs: The student achieves a diploma, associate degree or certificate; The student has attended his/her institution for three years (not counting approved leaves of absence) A South Carolina Promise Scholarship must cover the cost of tuition and include a stipend for books. The General Assembly will set funding.	Did not pass Expired - last referred to Senate Committee on Education and Public Works in January 2019
Tennessee		
Tennessee SB 516 & HB 586: An Act to amend Tennessee Code Annotated, Title 49, Chapter 7, relative to higher education for students with intellectual disabilities	Two identical bills introduced in January 2019, these would prohibit postsecondary institutions from denying a student residential housing on campus or an affiliated location solely because the student has received a Tennessee STEP UP scholarship. STEP UP is a state scholarship that supports students with intellectual disabilities who finish high school and enroll in a CTP at the University of Tennessee, the University of Memphis, Vanderbilt University, Lipscomb University, or Union University. They are companion bills and the language therein is	Did not pass On March 25, 2019, received from Senate, held on the House desk
Tennessee HB 1983: Scholarships and Financial Aid – As enacted, revises various provisions governing Tennessee STEP UP scholarships.	This act enables recipients of the STEP UP scholarship to apply its funds to enrollment in four-year PSE programs. STEP UP is a Tennessee state scholarship that supports students with ID who enroll in CTPs in TN. STEP UP scholarships may be up to \$1,750 as a freshman or sophomore; then up to \$2,250 as a junior or senior. Before this act, STEP UP could only be used to support enrollment in two-year programs.	Passed Signed: May 2, 2016 Funding – Expands Access Expands access for students with ID to use existing state scholarship

Texas		
Texas HB 2081: Relating to the establishment of the Building Better Futures Program	Creates the Building Better Futures Program, administered by the Texas Higher Education Coordinating Board. Provides funding for Comprehensive Transition and Postsecondary (CTP) programs for students with intellectual and developmental disabilities. Establishes eligibility rules for both colleges and students and prioritizes in-state applicants before admitting out-of-state students.	Passed Signed: May 26, 2025 Student Funding Program Funding
Texas HB 5603 Relating to tuition and fee exemptions for former foster children with intellectual disabilities to attend comprehensive transition and postsecondary programs	Provides tuition and fee exemptions for former foster youth with intellectual disabilities enrolled in Comprehensive Transition and Postsecondary programs at Texas public institutions. Clarifies that exemptions apply only to state-funded courses, with explicit inclusion of CTP enrollment.	Did Not Pass Referred to Higher Education Committee
Texas HB 4490: Relating to educational benefits for a student attending a CTP	This bill provides for individuals with ID attending a CTP program to receive waiver of tuition if the student is a veteran or other military personnel. The bill amends Section 54.001 Education to include the federal definition of a CTP program. It amends Sec 54.341 to include students who are admitted to, or attending, a CTP program in Texas' existing veterans tuition waiver. These amendments would include CTP programs, as well as the students attending these programs, in the tuition-setting guidelines and potential tuition exemptions.	Did Not Pass Referred to Higher Education Committee: March 21, 2023

<u>Texas HB 5146 Building Better Futures Program for Students with IDD</u> Originally introduced in 2021 as <u>Texas SB 661</u>	This bill would establish the Building Better Futures Program, that supports funding for CTP programs for students with intellectual and developmental disabilities. The Texas Higher Education Coordinating Board would administer the Program and adopt rules and policies, potentially creating application process for eligible institutions to apply for funding, eligibility criteria for both colleges and students to participate would be established. The focus would be on in-state students as a priority, only admitting out-of-state students after all Texas applicants are admitted.	Did Not Pass Reported from Senate Committee with no recommendations: May 18, 2023 Referred to Committee: March 11, 2021
<u>Texas SB 2217: An Act relating to the establishment of the Texas Students with Disabilities Scholarship Program for Certain Students at Public Institutions of Higher Education</u>	This bill directs the Texas Higher Education Coordinating Board to create the Texas Students with Disabilities Scholarship Program, which would provide assistance to students with disabilities at IHEs in Texas. Eligible students must be enrolled in an associate or baccalaureate degree or a certificate program, have applied for financial aid, be pursuing at least one-quarter of a full course load, and making satisfactory academic progress. The program will be developed in consultation with a Texas UCEDD and a statewide disability advocacy group.	Did not pass Referred to Senate Committee on Higher Education: March 21, 2019
<u>Texas HB 1807: An Act relating to requiring the Texas Higher Education Coordinating Board to maintain an inventory of PSE programs and services for persons with intellectual and developmental disabilities</u>	Directs the Texas Higher Education Coordinating Board to publicize information about PSE programs for students with IDD online and update it completely at least once every two years.	Passed Signed: June 17, 2015

Vermont		
<u>Vermont S231: An act relating to the creation of a tuition-free scholarship program for Vermont students.</u>	Creates the Vermont Promise Scholarship Program to provide tuition-free scholarships for Vermont students who attend the University of Vermont or a Vermont State College, beginning in FY 2020. A student with “a documented learning disability” may apply, as can other students. A Promise Scholarship covers tuition costs for one academic year, with the option to re-apply at the end of each academic year. Recipients must be seeking a certificate, associate’s degree or bachelor’s degree and should be enrolled in at least 12 hours a semester with a 2.5 GPA or higher. consequently identical; neither bill passed.	Did not pass Read 1st time & referred to Committee on Education: January 3, 2018

In addition to the legislation listed above, some states have proposed or enacted legislation that creates task forces and reports related to IPSE. This is far less common now than it was several years ago. For longevity purposes, relevant task forces and reports are listed below with links available for more information.

Task Forces

[California AB 2434: Blue Ribbon Commission on Public Postsecondary Education](#) – 2016, did not pass

[Georgia HR 642: House Study Committee on Postsecondary Education and Employment for Individuals with IDD](#) – 2015, enacted

[Maryland HB 0813: Task Force to Study the Impact of Expanding Credit and Noncredit Courses for Students with IDD](#) – 2013, enacted

[Rhode Island SB 2476: An Act Relating to State Affairs and Government – Governor’s Workforce Board](#) – 2016, enacted

[Texas SB 1017: An Act Relating to the Creation of the Advisory Council on Postsecondary Education for Persons with Intellectual and Developmental Disabilities](#) – 2019, enacted

Reports

[Report of California's Statewide Task Force on Special Education](#) – 2015

[Massachusetts Task Force Report on Higher Education for Students with Intellectual Disability and Autism Spectrum Disorder](#) – 2014

[Report on the Recruitment of Persons with Intellectual and Developmental Disabilities at Public Institutions of Higher Education in Texas](#) – 2016